



CHAPTER xiii.

An Act to confirm the construction of certain works to confer powers upon Round Oak Steel Works Limited with respect to two railway level crossings and for other purposes. [30th June 1948.]

WHEREAS by a private Act of Parliament 24 Geo. 3. (1784) session 2 chapter 18 being "An Act for dividing and inclosing the commons waste lands commonable woods and commonable places within the manor and parish of Kingswinford in the county of Stafford" it was enacted that the Right Honourable John Lord Viscount Dudley and Ward or the lord or lords of the manor of Kingswinford in the county of Stafford for the time being or his or their lessees should and might at all times thereafter have hold enjoy raise get take and carry away all mines of coal ironstone limestone glass-house pot clay firebrick clay and all mines and minerals whatsoever (except common brick clay and common free stone and rubble or notch stone) in or under certain commons waste lands and commonable woods within the said manor and the parish of Kingswinford being part and parcel of Pensnett Chase and divers other parcels of waste land and commonable places within the said manor and parish containing the whole upwards of one thousand three hundred acres and might have make and use all convenient ways roads and railways in upon and over the said lands for the use of any colliery or mines by the said Act authorised and for the working and carrying on of the same and with horses and other beasts and with carts wagons and other carriages might fetch have take and carry away and might sell and dispose of the coals ironstone and other mines and minerals to be found and raised by them:

And whereas in pursuance of the powers of the said Act a private mineral railway (known as "the Pensnett Railway" and in this Act referred to as "the railway") was constructed and for upwards of one hundred years now last past has been used for the carriage of minerals:

And whereas Round Oak Steel Works Limited (hereinafter called "the Company") are now the owners of the railway and the Company carry on business as ironmasters steel-makers steel converters and manufacturers smelters engineers and ironfounders at works situated partly in the urban district of Brierley Hill in the said county and partly in the county borough of Dudley and known respectively as Round Oak Steel Works the Old Level Iron Works and Level New Furnaces:

And whereas the railway passes through and affords a means of communication between the said works and is used for the transport of coal and other materials thereto the removal of iron and steel and other products and goods therefrom (including the removal of waste products to tipping areas) and for traffic between the said works:

And whereas the railway by two level crossings (hereinafter respectively called "the westerly level crossing" and "the easterly level crossing") carrying separate branches of the railway crosses the road known as Level Street in the said urban district which is situate between the said Round Oak Steel Works and the said Level New Furnaces on the north side thereof and the said Old Level Iron Works and the tipping area of the Company on the south side thereof and is a public highway under the jurisdiction of the urban district council of Brierley Hill as highway authority:

And whereas the railway where it crosses the said road by the westerly level crossing consisted formerly of two tracks each of standard gauge:

And whereas on the twentieth day of July nineteen hundred and forty-three the Minister of War Transport with the concurrence of the said urban district council in exercise of his powers under regulation 69A of the Defence (General) Regulations 1939 authorised the Company to widen the westerly level crossing by the provision of an additional track across the said road on the level and such additional track has been constructed and is of standard gauge:

And whereas the said authorisation terminated on the twenty-fourth day of February nineteen hundred and forty-six through the expiration of the said regulation 69A by virtue of the provisions of the Emergency Powers (Defence) Act 1945:

And whereas the railway where it crosses the said road by the easterly level crossing consists of two tracks each of

aforesaid between the Round Oak Steel Works and the Old Level Iron Works of the Company and on the westerly side of the canal bridge;

“ The easterly level crossing ” means the part of the railway which is laid across Level Street aforesaid between the Level New Furnaces and the tipping area of the Company and on the easterly side of the canal bridge;

“ The Minister ” means the Minister of Transport;

“ Daily penalty ” means a penalty for each day on which an offence is continued after conviction thereof;

“ Telegraphic line ” has the same meaning as in the Telegraph Act 1878.

41 & 42 Vict.
c. 76.

Confirmation
and use of
level crossings.

3.—(1) The construction of the westerly level crossing as the same now exists with three tracks of rails and the construction of the easterly level crossing as the same now exists with two tracks of rails (including a third rail on one track) are hereby respectively sanctioned and confirmed.

(2) Notwithstanding anything in the Act of 1784 the westerly level crossing and the easterly level crossing may be used by the Company with engines and wagons for the purpose of affording railway facilities for the conveyance of materials minerals goods and waste products between any parts of their said works and premises at Brierley Hill and Dudley aforesaid and to and from any of such works and premises.

(3) The Company may from time to time maintain repair renew improve reconstruct or discontinue the westerly level crossing and the easterly level crossing or either of them with all such machinery works and apparatus as may be necessary or convenient in connection therewith.

(4) Provided that—

(i) The rails of each of the said level crossings shall be so maintained that where the same cross the carriageway or footway of the road the upper surface thereof shall be upon a level with the surface of such carriageway or footway;

(ii) The Company shall keep paved or otherwise made up to the satisfaction of the council the spaces between the rails and such further parts of the carriageway and footway of the road as extend for a distance of not less than three feet outside the outer line of rails on each side of each of the said level crossings and shall maintain and keep the paving or other material laid in good repair and condition to the satisfaction of the council;

- (iii) The Company shall keep erected and at all times maintained and in good repair to the satisfaction of the council sufficient gates across the end of each of the said level crossings on each side of the road and such gates shall be of such dimensions and so constructed as when closed to fence in the railway and prevent cattle or horses passing along the road from entering upon the railway;
- (iv) Such gates shall be closed and kept fastened when the level crossing at which they are placed is not in use or about to be used by the Company;
- (v) At each of the said level crossings the Company shall employ a man on the road during the day time with red flags and during the night time with red lamps to warn and regulate the road traffic coming from either direction when a train or engine or wagon is passing or about to pass over such level crossing;
- (vi) The Company shall not at either of the said level crossings obstruct or hinder the traffic or persons passing along the road for longer than is absolutely necessary in taking any train or engine or wagon across the road;
- (vii) The Company shall at all times maintain at their own expense on or beside the road on each side of each of the said level crossings a "Level Crossing" sign of the standard type approved by the Minister.

4. If the Company shall use the westerly level crossing or the easterly level crossing or permit the same to be used otherwise than in accordance with the provisions of this Act they shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Penalty for
breach of
conditions.

5. For the purposes of the placing or maintenance of telegraphic lines under the powers conferred by the Telegraph Acts 1863 to 1943 the westerly level crossing and the easterly level crossing shall be deemed parts of Level Street aforesaid.

For protection
of Postmaster-
General.

6. The following provisions for the protection of the South Staffordshire Waterworks Company (hereinafter referred to as "the water company") shall unless otherwise agreed between the water company and the Company apply and have effect (that is to say):—

For protection
of South
Staffordshire
Waterworks
Company.

- (1) The water company shall be entitled at all times to break up Level Street aforesaid for the purpose of their undertaking and the Company shall not be

entitled to make any claim against the water company by reason of the temporary stoppage of traffic for a reasonable period over either the westerly level crossing or the easterly level crossing:

- (2) The water company shall except in case of emergency give the Company seven days' notice of their intention to break up the said street and shall comply with any reasonable request of the Company so as not to interfere unduly with either the westerly level crossing or the easterly level crossing or the traffic thereover and the water company shall replace and make good to the reasonable satisfaction of the Company the westerly level crossing or the easterly level crossing or both (as the case may be) including the spaces between the rails and such further parts of the carriageway and footway of the road as extend for a distance of not less than three feet outside the outer line of rails on each side of each of the said level crossings such replacement and making good to be executed forthwith after the completion of the water company's works at the expense of the water company less any extra cost entailed by reason of the said crossings which extra cost shall be borne by the Company:
- (3) The Company shall pay to the water company the reasonable expense of making good any damage done to the water company's pipes or apparatus under the westerly level crossing or the easterly level crossing by reason of the user by the Company of the same:
- (4) Any difference which shall arise between the Company and the water company under this section shall be referred to and determined by an arbitrator to be appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

For protection
of Dudley
Brierley
Hill and
District Gas
Company.

7. For the protection of the Dudley Brierley Hill and District Gas Company (hereinafter in this section referred to as "the gas company") the following provisions shall unless otherwise agreed in writing between the Company and the gas company apply and have effect:—

- (1) For the purposes of the provisions with respect to the breaking up of streets for the purpose of laying pipes of the Gasworks Clauses Act 1847 as incorporated in any Act or Order for the time being applying to the gas company the westerly level crossing and

the easterly level crossing and the space between the rails and such further parts of the carriageway or footway of the road as extend for a distance of not less than three feet outside the outer line of rails on each side of each of the said level crossings shall be deemed to be parts of Level Street aforesaid and the Company in addition to the council shall be deemed to be persons having the control or management of Level Street:

- (2) Any additional expense which the gas company may reasonably incur hereafter in renewing repairing altering or maintaining so much of the gas main laid in Level Street aforesaid as is situate under the westerly level crossing or the easterly level crossing by reason of the execution of the works authorised by this Act (whether those works are executed before or after the date of the passing of this Act) shall be paid by the Company:
- (3) Where the Company in exercise of the powers conferred by this Act require to execute any work near to which any gas main pipe or apparatus belonging to the gas company (hereinafter in this section referred to as "gas apparatus") has been lawfully placed the Company shall give to the gas company not less than fourteen days' notice before commencing to execute such work accompanied by such plans drawings and sections as are reasonably necessary to show the position and depth of the intended works (except in cases of emergency when notice shall be given as soon as possible after the beginning of the work or the necessity for the same shall have arisen) and the gas company shall be entitled to superintend the work and the Company shall conform with such reasonable requirements as may be made by the gas company for protecting from injury such gas apparatus and for securing access thereto and shall also if required so to do by the gas company repair any damage that may be done thereto:
- (4) Where the Company in executing any work in exercise of the powers conferred by this Act find it necessary to undermine but not to alter the position of any gas apparatus they shall temporarily support it in position during the execution of their works and shall before completion thereof provide a suitable and proper foundation for such apparatus where so undermined:
- (5) If as a result of the execution of any work by the Company in exercise of the powers conferred by this Act any damage is done to any gas apparatus

the gas company may if they so elect repair such damage and the Company shall repay to the gas company the cost reasonably incurred by them in so doing:

- (6) If the Company make default in complying with any of the requirements of this section they shall make full compensation to the gas company for any loss claims demands damage penalty or costs which they may incur by reason or in consequence thereof:
- (7) If any difference at any time arises between the Company and the gas company touching this section or anything to be done or not to be done thereunder such difference shall be referred to and determined by an arbitrator to be agreed upon between them or failing agreement to be appointed on the application of either party (after notice in writing to the other party) by the President of the Institution of Civil Engineers and subject as aforesaid the Arbitration Acts 1889 to 1934 or any modification thereof for the time being in force shall apply to any such reference and determination.

Summary
proceedings
for offences.

8. All offences under this Act may be prosecuted under the Summary Jurisdiction Acts.

Agreements
between
Company and
council.

9. The Company on the one hand and the council on the other hand may enter into and carry into effect and renew or vary contracts agreements or arrangements with respect to the maintenance and repair of the whole or any portion of that part of Level Street on which the westerly level crossing or the easterly level crossing is laid and the proportion to be paid by either of them of the expense of such maintenance and repair or with respect to the carrying out by the council or the Company of any works involving interference with or alteration of either of the said level crossings or the part of Level Street on which the same is laid.

Inclusion of
level crossings
in sale or
lease of
railway or
undertaking
of Company.

10. In the event of any sale or lease being made hereafter of the railway or of the undertaking of the Company the benefit of the rights conferred upon the Company by this Act subject to the obligations thereby imposed upon the Company may be included in such sale or lease.

Provision as
to general
Railway Acts.

11. Subject to the express provisions of this Act nothing in this Act contained shall be deemed or construed to exempt the westerly level crossing or the easterly level crossing from the provisions of any general Act relating to railways now in force or which may hereafter pass during this or any future session of Parliament.

12.—(1) The provisions of the Town and Country Planning Acts 1932 and 1943 the Town and Country Planning Act 1944 and the New Towns Act 1946 and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

Saving for town and country planning.
7 & 8 Geo. 6. c. 47.
9 & 10 Geo. 6. c. 68.

(2) This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

10 & 11 Geo. 6. c. 51.

13. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the Company.

Costs of Act.

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Ch. xiii.

Round Oak Steel Works
(Level Crossings) Act, 1948.

II & 12 GEO. 6.

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